

9:00 AM

Line 4

23-CIV-04084 SYLVIA ALVAREZ-LYNCH VS. MARK LAWRENCE CELLA, ET AL

SYLVIA ALVAREZ-LYNCH
MARK LAWRENCE CELLA

SARA M. PETERS
MICHAEL J. DALEY

Defendant, Cross-Defendant, and Cross-Complainant Grocery Outlet, Inc.'s Motion for Summary Adjudication on the Duty to Defend Against SHP Pacifica, LLC

TENTATIVE RULING:

This is Cross-complainant Grocery Outlet, Inc.'s Motion for Summary Adjudication on the Duty to Defend Against Cross-defendant SHP Pacifica, LLC. The motion is GRANTED. (Code of Civil Procedure § 437c)

Summary of Facts

Plaintiff Sylvia Alvarez-Lynch alleges that on or about February 12, 2023, she was a pedestrian walking to her vehicle in the parking of Grocery Outlet located in the City of Pacifica (the Premises), when she was struck by an Acura vehicle that was traveling in a generally southbound direction in the parking lot, driven by defendant Mark Cella and owned by defendant Kevin Bianchi. See, First Amended Complaint ("FAC"), filed on August 31, 2023.

Relevantly, Grocery Outlet, Inc. ("GOI") was named as a defendant for negligence-premises liability (see FAC, pg. 4). GOI tendered the defense of this matter to its landlord SHP Pacifica, LLC ("Landlord" or "SHP") on February 13, 2024 and again on April 10, 2024, but SHP rejected the tender at that time. Sep. Statement of Undisputed Facts ("SSUF") No.'s 10-12.

Only after the filing of this motion and full briefing, SHP finally has accepted GOI's tender and agreed in writing to defend and indemnify GOI against the claims made by Plaintiff in the FAC. Reply, pg. 2, lines 7-8. On a practical level this development moots this motion, however, GOI requests that the motion be granted regardless. Reply, pg. 2, line 10.

B. Legal Standard

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, ... if the party contends that ... there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action ... A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code of Civ. Proc. ("CCP"), § 437c, subd. (f)(1).)

A motion for summary adjudication “shall proceed in all procedural respects as a motion for summary judgment.” (CCP § 437c, subd. (f)(2).)

“The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (CCP § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (*Ibid.*)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467; see CCP § 437c, subd. (c).

GOI also cites to the seminal case of *Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, at 533 which interpreted Civil Code Section 2778. *Crawford* is on point and controlling. There the California Supreme Court provides “the duty to defend an indemnitee against all claims ‘embraced by the indemnity,’ as specified in subdivision 4 of section 2778, is that the **duty arises immediately upon a proper tender of defense** by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed.” *Id.* at 558 (emphasis added).

C. Discussion

GOI and SHP both concede the express language of the indemnity clause at issue in Section 12.4 of the parties Lease Agreement, so it is not repeated herein. See GOI’s SSUF No. 4, and SHP’s Response to No. 4 (“Undisputed” except that SHP quotes additional language from the Lease Agreement). Both parties conceded the filing of the operative FAC, and the specific allegations made by Plaintiff, including the Negligence-Premises Liability and the facts pertaining to the incident. See GOI’s SSUF No.’s 7-9, and SHP’s Response to No.’s 7-9 (“Undisputed”). Finally, both parties again concede that GOI tendered the defense of this matter twice on February 13, 2024 and on April 10, 2024, and that SHP rejected the tender on April 16, 2024. See GOI’s SSUF No.’s 10-12, and SHP’s Response to No.’s 10-12 (“Undisputed”).

Thus there are no triable issues of material fact. Plaintiff has alleged injuries from an accident that occurred on the premises, which claim is embraced by the terms of indemnity, and for which GOI tendered the defense and SHP improperly refused before the filing of this motion.

The motion for summary adjudication is thus GRANTED. SHP had a duty to defend GOI from the first date of tender on February 13, 2024, which duty is continuing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-07539 HAMID KHAZAELI VS. 21X CAPITAL LP, ET AL

HAMID KHAZAELI
21X CAPITAL LP

PRO SE
JOHN S. CLAASSEN

Plaintiff's (Amended) Motion for Leave to Conduct Limited (Specified) Discovery Pursuant to C.C.P. Section 425.16(g)

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's Motion for Leave to Conduct Limited Discovery Pursuant to Code Civ. Proc. § 425.16, Subd. (g), is DENIED.

Plaintiff Hamid Khazaeli's request to strike the July 27, 2026 Declaration of John Claassen is DENIED. Plaintiff Hamid Khazaeli provides no authority in support of his contention that an error in the case number on a served paper warrants an order striking the paper.

When notice of a special motion to strike under Code of Civil Procedure section 425.16 is filed, all discovery proceedings are stayed. (Code Civ. Proc., § 425.16, subd. (g).) On a noticed motion and for good cause shown, a court may nonetheless exercise its discretion to allow specified discovery to be conducted. (*Ibid.*; *Balla v. Hall* (2021) 59 Cal.App.5th 652, 692.)

The party seeking the specified discovery bears the burden of demonstrating good cause, requiring the movant to "explain what additional facts he expects to uncover" and why the discovery is necessary. (*Sipple v. Foundation For Nat. Progress* (1999) 71 Cal.App.4th 226, 247.) The explanation must address the particular elements of the causes of actions or defenses at issue and show that the elements as to which discovery is being sought are likely be addressed in the ruling on the special motion to strike, such as by demonstrating that every other element of the cause of action or defense can be established. (See *The Garment Workers Center v. Superior Court* (2004) 117 Cal.App.4th 1156, 1162–1163.) In addition, to show that the discovery is necessary, the movant must demonstrate that the evidence cannot be obtained from other sources by specifying the particular reasonable attempts made to secure the information that have been unsuccessful. (See *Paterno v. Superior Court* (2008) 163 Cal.App.4th 1342, 1351, fn. 4.)

Here, Plaintiff fails to make the required showing. The motion fails to articulate or explain what evidence will show what facts to establish which elements of which causes of action. Instead, Plaintiff merely offers open-ended lists of topics to be discovered by documents requests and depositions without express connections to specified causes of action or defenses: for example, the motion states that, without discovery, "cannot establish (covered) employer, lack of protection under Civil Court section 1714.10 for all defendants, falsity, actual malice,
